IN THE SUPREME COURT OF THE STATE OF WASHINGTON

STATE OF WASHINGTON, *Respondent,* vs. CHRISTOPHER LEE DERRI, a.k.a. JOHN STITES, *Petitioner.*	))))))	No. 100038-3 MOTION TO STRIKE ISSUES OUTSIDE THE SCOPE OF REVIEW

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1. IDENTITY OF MOVING PARTY

The State of Washington seeks the relief designated in part 2.

2. STATEMENT OF RELIEF SOUGHT

The State asks this Court to strike from the Supplemental Brief of Petitioner: (1) section D.1.c.1., a claim that exclusion of the identifications was required under Washington's state due process clause, which was first referenced in the petition for review without the Gunwall analysis necessary to justify its consideration; and (2) section D.1.c.2., a claim that exclusion of the identifications was required under the rules of evidence and that the admission of an identification following a suggestive identification procedure by a non-state actor implicates the state due process clause, both of which were first raised in Stites' supplemental brief. If this Court denies those requests, the State respectfully asks this Court for permission to file a short brief responding to those claims.

3. FACTS RELEVANT TO MOTION

One of the issues before this Court is the admissibility of three eyewitnesses' out-of-court and in-court identifications of Stites as the man who committed three bank robberies. Stites argued in the trial court that the identifications were inadmissible under the test set out in Neil v. Biggers, 409 U.S. 188, 93 S. Ct. 375, 34 L. Ed. 2d 401 (1972), which is rooted in the federal Due Process Clause, because they allegedly resulted from suggestive identification procedures and were not sufficiently reliable to be admissible despite the suggestive procedures. CP 9-27, 217-25; RP 12-20, 30-41; Br. of Appellant at 17-28. Although Stites' reply brief in the trial court cited three cases in which other states have modified the Biggers test and urged the trial court to do the same, at no point did Stites mention Washington's state due process clause or argue that it required the crafting of a narrower test. CP 222; RP 12-20, 30-41. In his argument under Biggers, Stites asserted that one of the facts that rendered the identifications suggestive was a bank

manager's belief that he had shown a Facebook photo of Stites to two witnesses before their montage identifications.[1] CP 19.

The trial court declined to modify the Biggers factors and found the challenged identifications admissible under that test. RP 106-11. It rejected Stites' claim that the bank manager's conduct rendered two of the identification procedures suggestive, noting that the due process clause is concerned only with suggestiveness created by law enforcement, not non-state actors. RP 110.

In the Court of Appeals, Stites abandoned his argument for a modification of the Biggers factors and simply argued that the identifications were inadmissible under Biggers. Br. of Appellant at 17-28. He also abandoned the argument that the bank manager's conduct contributed to the suggestiveness of the identification procedures and implicated due process. CP

[1]The State made an offer of proof that the witness who remembered seeing the Facebook photo was adamant that the manager showed it to her long after she viewed the montage. RP 41, 109-10. The offer of proof was borne out by the witness's testimony at trial. RP 462.

19; Appellant's Reply at 8 (noting "Mr. Stites did not challenge [on appeal] the suggestiveness of those identifications based on the prior Facebook viewing because the police did not conduct the procedure"). Instead, Stites argued only that the procedures were suggestive due to law enforcement's actions. Br. of Appellant at 17-28.

In the petition for review, in a single paragraph tacked on at the end of his argument that the challenged identifications were inadmissible under the Biggers factors, Stites asserted for the first time that

> Even if this Court finds the Biggers factors do not demonstrate a substantial likelihood of irreparable identification, this Court should accept review to craft a different set of factors to protect a person's right to due process. "Our state constitution's due process clause provides even greater protection of individual rights in certain circumstances." State v. Blake, 197 Wn.2d 170, 181, 481 P.3d 521 (2021). These factors should be congruent with our modern understanding of memory and factors that both inhibit and increase reliability of identifications. The Biggers factors are insufficient to guard against the likelihood of misidentification and the consequent wrongful convictions. RAP 13.4(b)(3), (4).

Petition at 12. Stites provided no further argument and did not analyze the Gunwall[2] factors. Petition at 12. While it appears likely that Stites wished this Court to incorporate the same system and estimator variables discussed earlier in the petition, Stites never actually identified what he thought the new state-constitution-based factors should be. Petition at 12. Stites also never alleged, let alone established, that the trial court's failure to exclude the challenged identifications on state due process grounds was a manifest constitutional error entitled to review for the first time on appeal under RAP 2.5. Petition at 12. Stites never asserted in the petition, or at any point before then, that the identifications should have been excluded under the rules of evidence. Petition at 6-12. Stites also never discussed suggestiveness resulting from non-state action in the petition. Petition at 6-12.

This Court granted review on the issue of "whether the eyewitness identification evidence should have been suppressed

[2]State v. Gunwall, 106 Wn.2d 54, 720 P.2d 808 (1986).

on the basis of suggestive photomontage procedures." This Court did not indicate that it was granting review on any issues Stites had not raised in the Court of Appeals.

In section D.1.c.1. of his supplemental brief, Stites argues that this Court should find the challenged identifications inadmissible under the state due process clause, and for the first time provided an analysis of the Gunwall factors. Def.'s Supp. Br. at 26-30. In section D.1.c.2., Stites raises a brand-new claim that this Court should find the identifications inadmissible under the rules of evidence as a mechanism for excluding unreliable identifications following suggestive circumstances caused by non-state actors. Def.'s Supp. Br. at 30-33. Within that section, Stites inserts another brand-new claim that the admission of eyewitness identifications that allegedly resulted from suggestion by non-state actors also implicates the state due process clause even though it does not implicate the federal due process clause. Def.'s Supp. Br. at 31-33. Stites does not

provide a Gunwall analysis of the scope of the state due process clause as it relates to non-state action. Def.'s Supp. Br. at 31-33.

At the time the State prepared its supplemental brief, it it did not have Stites' Gunwall analysis, his claim that exclusion was required under the rules of evidence, or his claim that admission of an identification following suggestion by non-state actors implicates the state due process clause.

4. GROUNDS FOR RELIEF AND ARGUMENT

RAP 13.3(a) allows a party to seek review by the Supreme Court of "any decision" of the Court of Appeals, but there is no mechanism for seeking review of a decision the Court of Appeals did not make on a question that was not presented to it. RAP 13.7(b); State v. Halstien, 122 Wn.2d 109, 130, 857 P.2d 270 (1993) ("An issue not raised or briefed in the Court of Appeals will not be considered by this court."); Plein v. Lacky, 149 Wn.2d 214, 222, 67 P.2d 1061 (2003) (a party may not raise a new issue in a petition for review except when

raising a new ground for affirmance on which the record is sufficiently developed). The scope of review is limited to only those issues raised in the petition for review. RAP 13.7(b).

This Court will not consider a claim that a state constitutional provision is more protective than its federal counterpart if the claim is raised without analysis of the Gunwall factors in the Court of Appeals or the petition for review. State v. Valentine, 132 Wn.2d 1, 22 n.14, 935 P.2d 1294 (1997); see also State v. Bustamante-Davila, 138 Wn.2d 964, 978-79, 983 P.2d 590 (1999) (holding that although petitioner raised state constitutional claim in the Court of Appeals without a Gunwall analysis, "Petitioner discussed the Gunwall factors in his petition for review to this Court. This Court may thus consider his claim under the state constitution."); State v. Mendez, 137 Wn.2d 208, 216–17, 970 P.2d 722 (1999) (denying motion to strike state constitutional argument not raised with Gunwall analysis in Court of Appeals because petitioner analyzed Gunwall factors in petition for review),

abrogated on other grounds by Brendlin v. California, 551 U.S. 249, 127 S. Ct. 2400, 168 L. Ed. 2d 132 (2007).

Here, Stites raised a state due process claim for the first time in the petition, and only provided the necessary Gunwall analysis later in his supplemental brief. He also raised a claim under the rules of evidence, and resurrected a previously abandoned claim about non-state action on new grounds, for the first time in his supplemental brief. Because the State's supplemental brief was filed at the same time as Stites' supplemental brief, the State has been deprived of the opportunity to respond in writing to Stites' Gunwall analysis or his evidentiary and non-state action claims. Moreover, interested amici curiae would not have had full notice of the scope of issues raised in his petition.

Even if Stites had attempted to raise these claims for the first time in the Court of Appeals, he would have had the burden to establish that the claims involved manifest constitutional errors. RAP 2.5(a); State v. O'Hara, 167 Wn.2d

91, 98, 217 P.3d 756, 760 (2009). He has not met, and cannot meet, that burden.

Stites' argument that the identifications should have been excluded under the rules of evidence is obviously not of constitutional dimension. His argument for an extension of the state due process clause is, by nature, novel and cannot support a conclusion that it was an obvious error for the trial court to fail to sua sponte exclude the challenged admissions under Article 1, section 3. See State v. O'Hara, 167 Wn.2d 91, 99–100, 217 P.3d 756 (2009) question is whether "the error is so obvious on the record that [it] warrants appellate review" despite not being raised in the trial court. "It is not the role of an appellate court on direct appeal to address claims where the trial court could not have foreseen the potential error."); State v. Lynn, 67 Wn. App. 339, 343-44, 835 P.2d 251 (1992) ("[I]t is important that 'manifest' be a meaningful and operational screening device if we are to preserve the integrity of the trial and reduce unnecessary appeals.").

A petitioner who attempts to raise claims for the first time in this Court should not be held to a lower standard than he would have faced in the Court of Appeals. Stites' failure to establish that review of his new claims is warranted under RAP 2.5(a) is an additional reason why those claims should be stricken from his supplemental brief.

Because sections D.1.c.1. and D.1.c.2 of Stites' supplemental brief argue claims that are not properly before this Court, those sections should be stricken. If this Court denies this motion in whole or in part, then in the interest of fairness it should permit the State to file a second supplemental brief of no more than 2,500 words responding to the section or sections the Court declines to strike.[3]

[3]The State notes that while both parties received permission to file overlength supplemental briefs, Stites' supplemental brief was significantly longer than the State's.

5. CONCLUSION

For the foregoing reasons, the State respectfully asks this Court to strike sections D.1.c.1. and D.1.c.2 of Stites' supplemental brief. If this Court denies this motion in whole or in part, the State requests permission to file a second supplemental brief responding to the new claims the Court declines to strike.

Submitted this 3 rd day of January, 2022.[4]

[4]The State regrets the delay in filing this motion. Undersigned counsel went on vacation immediately after filing the State's supplemental brief on December 22 nd and did not have a chance to thoroughly review Stites' supplemental brief until December 29 th . Unfortunately, between the snow-induced closure of

This document contains 1999 words, excluding the parts of the document exempted from the word count by RAP 18.17(b).

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